criminalises homosexuality) were comprehensively defeated in the Lok Sabha by homophobic bigotry in the name of Hindutva.

Here was the spectacle of a parliamentary democracy refusing to entertain debate—the ruling party using its brute majority to defeat a motion without even a discussion. How can a deliberative legislature in what claims to be the temple of democracy dismiss an issue out of hand without even hearing the arguments in its favour or against it?

And to add to the hypocrisy, nowhere in over two thousand years of recorded Hindu texts is there any evidence that the Indian ethos was intolerant of sexual difference or gender orientation. Ours is a culture that embraces Shikhandi in the *Mahabharata*, the homoerotic sculptures (mixed in with the rest) in Khajuraho, and the very concept of the Ardhanarishwara, the half-man half-woman embodiment of divinity. No historical records reveal the persecution or prosecution of sexual deviancy in India. Now we have the spectacle of the party of Hindutva, the self-appointed guardians of Bharatiya Sanskriti, betraying a Hindu history of tolerance in order to uphold (without debate) an iniquitous law from the British colonial era. It is a new low in the annals of Indian democracy and a triumph for Indian hypocrisy.

In proposing to amend Section 377, I had explained that we shouldn't have a law on the books that can be used to oppress and harass innocent people conducting their personal lives in private. What two people do to express their love and desire for each other should be strictly between them. The government has no place in India's bedrooms.

But equally important, I had tried to explain (though alas, I was not allowed to do so in Parliament) that my Bill was not about sex but about freedom. Section 377 violates the constitutional rights of dignity, privacy, equality and non-discrimination (Articles 14, 15 and 21) guaranteed to all Indian citizens. It is a British relic, drafted in 1860 and based on outdated Victorian morals rather than authentically Indian values. It has no place in twenty-first century India.

To compound the ironies, within half an hour of the defeat of my amendment, I was rising in the same Lok Sabha to speak in favour of the Rights of Transgender Persons Bill, which had already been passed earlier in the Rajya Sabha. The passage of this progressive bill would